

Standard Operating Procedure

Cell Phone & Mobile Device Use in the Workplace

Document No.	SOP-LV-037
Effective Date	July 26, 2026
Revision	1.0
Review Date	July 26, 2027
Applicable Jurisdiction	Ontario (see Section 9 for Manitoba)
Applies To	All field technicians, drivers, and site personnel
Prepared By	_____
Approved By	_____

1. Purpose

This procedure establishes rules for cell phone and mobile device use during work hours, while driving Company vehicles, and while on client sites. It is intended to prevent distraction-related incidents, protect client confidentiality and privacy, and keep the Company in compliance with Ontario's distracted driving laws.

2. Scope

Applies to all technicians and site personnel using a personal or Company-issued cell phone, tablet, or similar mobile device during work hours, while driving on Company business, or while present at a client site.

3. Driving — Hand-Held Devices Prohibited

THIS IS THE LAW, NOT JUST COMPANY POLICY:

Ontario's Highway Traffic Act, Section 78.1, prohibits holding or using a hand-held wireless communication device while driving — including while stopped in traffic or at a red light. This applies to talking, texting, dialing, emailing, and even briefly picking up or holding the device. Violations carry fines up to \$3,000, demerit points, and licence suspension (3 days, or 30 days for novice licence holders).

- Do not hold, dial, text, or otherwise use a hand-held device while the vehicle is in motion or stopped on the roadway (including at lights or in traffic).
- Hands-free use is permitted under HTA Section 78.1(3) — a pre-programmed hands-free system, earpiece, or voice-activated function, engaged before driving, not fiddled with while underway.
- The only exception under the HTA is dialing 911 to report a genuine emergency.
- If you need to make a call, send a text, or program navigation, pull over and park in an appropriate location first — do not attempt this from a travel lane or shoulder.
- This applies equally to Company vehicles and personal vehicles used for Company business.

4. Use While Operating Tools, Equipment, or Working at Heights

- Do not use a cell phone while operating a power tool, working from a ladder, aerial lift, or scissor lift, or performing work on or near energized equipment — both hands and full attention are required for these tasks.
- If a call or message needs attention while performing this type of work, stop the task, place tools/equipment in a safe state, and step away before using the device.
- Do not wear headphones or earbuds in a way that blocks awareness of surroundings, alarms, or verbal communication from coworkers while performing active field work.

5. Photography, Video & Client Site Confidentiality

- Only take photos or video at a client site for approved work purposes — job documentation, CompanyCam records, incident/damage reporting, or as otherwise directed by the Site Supervisor.
- Do not take personal photos or videos of a client's premises, property, employees, or visitors.

- Be mindful of what's visible in the background of any work photo — client documents, screens, security codes, floor plans, or other confidential information should not be incidentally captured and shared.
- Do not photograph or record other people (coworkers, client staff, members of the public) without their knowledge, beyond what's required for legitimate work documentation.
- Work-related photos and videos are Company/client property — do not post them to personal social media without authorization.

6. Personal Use During Work Hours

- Reasonable personal use (checking messages, brief calls) is permitted during scheduled breaks.
- Personal use should not occur during active client-facing work, while operating a vehicle, or while performing tasks requiring full attention (Sections 3–4).
- Excessive personal phone use during work hours that affects productivity or client service should be addressed as a performance matter with the Site Supervisor.

7. Emergency Use

Nothing in this procedure restricts using a phone to call 911 or otherwise respond to a genuine emergency — a safety incident, injury, fire, or similar situation always takes priority over this policy. When safe to do so, pull over before dialing if driving.

8. Data Security

- Where Company email, scheduling, or other business applications are installed on a personal device, follow the Company's data security expectations for that device (passcode/biometric lock enabled, timely software updates).
- Report a lost or stolen device with Company data/access on it to the Site Supervisor immediately.

9. Manitoba Note

For work performed in Manitoba, distracted driving rules are set out in the Manitoba Highway Traffic Act and may differ in specific provisions from Ontario's HTA Section 78.1 — do not assume the Ontario citation applies unchanged. Confirm current Manitoba requirements with the Site Supervisor before relying on this document for Manitoba-based driving.

10. Non-Compliance

A distracted driving conviction while operating a Company vehicle, or on Company business in a personal vehicle, is the driver's personal legal responsibility (fines, demerit points, licence suspension), and may also result in Company disciplinary action up to and including termination, consistent with Company policy. Breaches of client confidentiality (Section 5) will be treated as a serious conduct matter.

11. References

- Ontario Highway Traffic Act, R.S.O. 1990, c. H.8, Section 78.1 — Handheld Devices Prohibited
- Manitoba Highway Traffic Act, where applicable
- Ontario Occupational Health and Safety Act (OHSA)

12. Acknowledgement & Sign-Off

By signing below, I confirm that I have read, understood, and agree to comply with this Cell Phone & Mobile Device Use procedure.

Printed Name	Signature	Date

Printed Name	Signature	Date